Bharat Sanchar Nigam Limited vs Kerala State Electricity Board & Anr on 5 August, 2011

Before the Appellate Tribunal for Electricity
(Appellate Jurisdiction)

Appeal No. 95 of 2011&
IA 164 of 2011

Dated : 5th August, 2011

Present: Hon'ble Mr. Justice M. Karpaga Vinayagam, Chairperson
Hon'ble Mr. V.J. Talwar, Technical Member

Bharat Sanchar Nigam Limited ... Appellant(s)

Versus

Kerala State Electricity Board & Anr. ....Respondent(s)

Counsel for the Appellant(s): Mr. Sharat Kapoor, Mr. Sourabh Chugh

ORDER

It is submitted by the learned counsel for the Appellant that the Writ Petition is still pending before the High Court of Kerala and not yet been disposed of. Therefore, as we mentioned earlier in our Order, dated 22.07.2011, we are not inclined to entertain the Appeal. However, it is open to the Appellant to pursue the matter before the High Court, where the Writ Petition is pending.

With the above observations the Appeal is dismissed.

(V.J. Talwar)
Technical Member

(Justice M. KarpagaVinayagam)
Chairperson

TS/KS

Note: Registry is directed to issue
a copy of the Order today.